

24STCV17755 24STCV17755

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-03

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Case Number: 24STCV17755 Hearing Date: August 3, 2026 Dept: 732

Marat Mkrtchyan v. BMW of North America, LLC, et al.

Monday, August 3, 2026

CASE NUMBER: 24STCV17755

UNOPPOSED

Defendants Foothill

Transit and Keolis Transit America, Inc.'s Motion to Compel Deposition of
Plaintiff Joseph Ryler Bailey

Facts: This is a

lemon law action. The Complaint alleges as follows. Plaintiff Marat Mkrtchyan ("Plaintiff") purchased a 2022 BMW X7 on January 1, 2022, with an express written warranty. (Complaint ¶¶ 5–9.) During the warranty period, the vehicle contained or developed defects that the manufacturer has been unable to remedy. (Complaint ¶¶ 11–14.)

Procedural History: Plaintiff filed the Complaint on July 17, 2024, alleging five causes of action:

1.

Civ. Code § 1793.2, subd. (d)

2.

Civ. Code § 1793.2, subd. (b)

3.

Civ. Code § 1793.2, subd. (a)(3)

4.

Breach of Express Written Warranty

5.

Breach of Implied Warranty of Merchantability

Plaintiff filed the present

motion to compel deposition on April 29, 2026. No opposition has been filed.

Analysis:

I.

MOTION TO

COMPEL DEPOSITION

A party may make a

motion compelling a witness's deposition "after service of a deposition notice" if that witness "fails to appear for examination, or to proceed with it." (Code Civ. Proc. § 2025.450, subd. (a).) The motion must include a meet-and-confer declaration and show good cause for the discovery sought. (Code Civ. Proc. § 2025.450, subd. (b)(1), (2).)

Plaintiff Marat

Mkrtchyan ("Plaintiff") moves to compel the deposition of Defendant BMW of North America, LLC's ("Defendant") person most qualified. Plaintiff served the notice of deposition on March 31, 2026, noticing the deposition for April 20, 2026. (Hilou Decl. Exh. 2.) Defendant served objections on April 15, 2026, indicating it would not appear on that date but would meet and confer as to an appropriate date of deposition. (Hilou Decl. Exh. 3.) Plaintiff sent an email requesting deposition dates on April 22, 2026, but no response was given. (Hilou Decl. ¶¶ 12–13, Exh. 4.) The present motion followed on April 29, 2026.

Plaintiff has shown

that Defendant has objected to deposition on the basis of scheduling, but despite efforts to meet and confer by Plaintiff's counsel, has not offered any proposed dates of deposition for its person most qualified. Defendant has filed no opposition to the present motion.

Accordingly, the motion to compel deposition is GRANTED. The deposition of Defendant's person most qualified shall occur within 30 days of this order.

Superior Court of California

County of Los Angeles

Department 732

MARAT MKRTCHYAN,

Plaintiff,

v.

BMW OF NORTH

AMERICA, et al.,

Defendants.

Case No.: 24STCV24951

Hearing Date: August 3, 2026

[TENTATIVE] RULING RE:

Plaintiff Marat Mkrtchyan's Motion to Compel
Deposition of Defendant BMW of North America, LLC's Person Most Qualified

Plaintiff

Marat Mkrtchyan's Motion to Compel Deposition of Defendant BMW of North America, LLC's Person Most Qualified is GRANTED. The deposition of Defendant's person most qualified shall occur within 30 days of this order.

Plaintiff to
provide notice.

Dated: August 3, 2026

Hon.
Richard S. Kemalyan

Judge
of the Superior Court